ORDINANCE 22-017Z
ORDINANCE OF THE TOWN OF NORTH PROVIDENCE AMENDING THE EXISTING ZONING ORDINANCE AND ZONING MAP

WHEREAS, the Town Council of the Town of North Providence previously amended, by Ordinance Numbered 20-001 Z dated January 7, 2020, its existing Zoning Ordinance and Zoning Map with regard to the Zoning of Lots 32,33,34,35,36 & 38 on Assessor's Plat 16(the "Premises") from Residential Limited 10 (RLI 0) to Commercial Village (CV); and

WHEREAS, as part of said zone change there were several Stipulations/Restrictions attached to said zone change and included in Ordinance #20-001Z dated January 7, 2020; and

WHEREAS, the Owner of the Premises has requested that one of the Restrictions/Stipulations, to wit, the Restriction/Stipulation contained in Section 2(d) of Ordinance# 20-001 Z dated January 7, 2020 be removed; and

WHEREAS, the Town Council of the Town of North Providence convened on April 7, 2022 and voted to remove said Section 2(d) from Ordinance#20-001Z dated January 7, 2020.

NOW, THEREFORE, BE IT HEREBY ORDAINED BY THE TOWN COUNCIL OF THE TOWN OF NORTH PROVIDENCE AS FOLLOWS:

SECTION ONE: That the Stipulations/Restrictions set forth in Section 2(d) of Ordinance #20-00 IZ dated January 7, 2020, restricting the sale of alcohol on the premises or having a restaurant on the premises, are hereby removed. The restriction that there shall be no business on the premises that utilizes a drive through, in Section 2(d), shall remain.

SECTION TWO: All of the remaining terms, conditions, restrictions and stipulations of Ordinance #20-00IZ dated January 7, 2020, not inconsistent herewith, shall remain in full force and effect.

SECTION FOUR: This Ordinance shall take effect upon adoption and any Ordinance inconsistent herewith is hereby repealed.

APPROVED AS TO FORM AND LEGALITY:

TOWN SOLICITOR

ADOPTED: May 3, 2022

COUNCIL PRESIDENT

APPROVED May 4, 2022

MAYOR

Maryann deAngelus

TOWN CLERK

TOWN OF NORTH PROVIDENCE TOWN COUNCIL

In Re: Application of Jeff-Anthony Properties, Inc.

DECISION

The above matter came before the North Providence Town Council, on April 5, 2022 with regard to an application filed by the above-referenced party to amend the December 10, 2019 Decision to remove "Stipulation 2(d)" from said Decision. The representative of the applicant was present and after a public hearing before the North Providence Town Council, the Town Council, upon a vote of six (6) ayes and zero (0) nayes, makes the following decision:

1. That the prior Decision of the North Providence Town Council dated December 10, 2019, related to the zone change of land referred to as Tax Assessor's Plat 16, Lots 32,33,34,35,36 & 38, shall be amended to allow for the sale of alcohol on the premises and to allow a restaurant on the premises, but the restriction that there shall be no business on the premises that utilizes a drive through shall remain;

2. All further parts of the Decision of December 10, 2019, not inconsistent herewith, shall remian in full force and effect.

Entered as a Decision of the North Providence Town Council, the local authority, on this 5th day of April, 2022.

ADOPTED: April 5, 2022

COUNCIL PRESIDENT

TOWN CLERK